NON-COMPETE AND NON-SOLICITATION POLICY

OBJECTIVE:

- The said policy has been framed to ensure the employees' loyalty towards the Company during employment and ethical work practices at all times.
- The Policy further aims to protect the business interests of the Company and prevent the Company's competitors from gaining access to the Company's confidential information.
- The Policy also aims to avoid its previous employees from soliciting its clients and existing employees for their advantage, thus affecting the business and performance of the Company.
- The purpose of this Policy is to protect the Company's legitimate business interests, including its confidential information, customer relationships, and goodwill.

EFFECTIVENESS:

The said policy shall become effective from the date the Employee commences Employment with the Company and shall remain effective till specified in the Policy.

NON-COMPETE:

- The employees during the term of their employment with the Company cannot engage in any business activity which is competitive with the Company nor work for any company which competes with the Company.
- For two (2) years immediately following the termination of employment, The Employees will not, for themselves or on behalf of any other person or business enterprise, engage in any business activity that competes with the Company within 50 km of the registered office of the Company.

- This includes starting a business, consulting with a competitor, or investing in a competitor. This includes soliciting or attempting to solicit any of the Company's Customers to purchase goods or services from a competitor, or to join a competitor as an employee.

- Given the increase in remote work arrangements, the geographic scope of the non-compete clause may be adapted to account for employees who work remotely from locations outside the company's primary office location. The non-compete restrictions will apply to any geographic area where the employee has worked or provided services during their tenure with the company.

1. Non-Solicitation during Employment:

- During the term of your employment, and for two (2) years immediately thereafter, the Employees cannot solicit any employee or independent contractor of the Company on behalf of any other business enterprise, nor shall the Employee induce any employee or independent contractor associated with the Company to terminate or breach an employment, contractual or other relationship with the Company.

- The non-solicitation clause extends to digital platforms and social media networks. Employees are prohibited from using LinkedIn, Facebook, or any other social media channels to solicit the company's clients, employees, or contractors for competitive business activities during the non-solicitation period.

- The policy includes specific provisions regarding the protection of digital data and confidential information. Employees are strictly prohibited from transferring, copying, or using any proprietary data or confidential information belonging to the company for the benefit of any competitor or personal gain, both during and after their employment.

- In alignment with recent legal trends, the non-compete and non-solicitation clauses will be subject to limitations in terms of duration, geographic scope, and the scope of restricted activities to ensure they are reasonable and enforceable under local and international laws. Any restrictions will be balanced against the need to protect the company's legitimate business interests.

2. Soliciting Clients of the Company after Termination of Agreement:

- For two (2) years following the termination of employment with the company, the employee shall not directly or indirectly, disclose to any person, firm, or corporation the names or addresses of any of the customers or clients of the Company or any other information about them.
- Neither shall the employee call on, solicit, take away, or attempt to call on, solicit, nor did take away any customer/client of the Company on whom with whom the employee had become acquaint during the term of his/her employment with the Company, as the direct or indirect result of his/her employment with the Company.
- In cases where the employee voluntarily resigns, the company may offer to waive the non-compete clause, depending on the circumstances, to promote goodwill and maintain positive post-employment relationships. This waiver, if applicable, will be reviewed on a case-by-case basis and requires formal written approval from the company's legal department.

3. Injunctive Relief / Penalty:

- The Company hereby states that irreparable damage will be caused to the Company if the Employees breach the provisions of the said policy and monetary compensation shall not be adequate to compensate the damages caused.

- Therefore, if an employee breaches any of the provisions of the said policy, then the Company shall be entitled to injunctive relief, in addition to any other remedies at law or equity, to enforce such provisions.
- Employees who are required to enter into a non-compete agreement will receive consideration in the form of additional benefits, bonuses, or access to special training opportunities as part of the agreement. This ensures that the non-compete clause is supported by adequate consideration and remains legally enforceable.

CHANGE LOG:

Version	Date	Author	Section	Change Description
1.0	15-05-2020	HR	Overall	Release of the non-compete and non-solicitation Policy for this financial year.
1.1	13-08-2024	HR/Balaji	Overall	Release of the non–compete and non-solicitation Policy for this financial year.